chargesheet on 14 May 2005; in other words, no counsel had studied the complex case. According to the Supreme Court judgement, when he 'declined to engage a counsel on his own'[15], the special judge appointed the noted criminal lawyer Seema Gulati, who took charge on 17 May along with her junior Neeraj Bansal.

On 5 June, all the defence lawyers agreed not to dispute postmortem reports, MLCs and documents related to the recovery of guns and explosive substances at the spot resulting in 'the drop of a considerable number of witnesses for the prosecution'. The court did not dispute the contention of the defence counsel at the Supreme Court that Gulati 'took no instructions from Afzal or discussed the case with him'[16]. Taking a strictly legalistic view, the court merely held that the 'counsel had exercised her discretion reasonably. The appellant accused did not object to this course adopted by the amicus throughout the trial'. It also states that on 1 July, Gulati 'filed an application praying for her discharge from the case citing a curious reason that she had been engaged by another accused, Geelani'[17].

On 2 July, Gulati's junior Neeraj Bansal was appointed amicus. Afzal protested against this nomination on 8 July and submitted a list of four senior advocates. Since none was willing to take up the case, Bansal continued as amicus for the rest of the trial. 'In capital cases,' Ram Jethmalani observed, 'particularly those that arouse public prejudice and anger against the accused making it difficult for them to arrange for their own defence, it is the duty of the court to provide adequate defence at state expense.' In response, taking a strictly legalistic view, the Supreme Court held that 'taking an overall view of the assistance given by the court and the performance of the counsel, it cannot be said that the accused was denied the facility of effective defence'[18].

The amicus, Neeraj Bansal, did not even pay a visit to his client. 'His presence and participation have caused confusion and prejudice vitiating the trial,' Jethmalani observed in a written submission on behalf of Geelani.[19] Afzal's wife Tabassum says in 'A Wife's Appeal for Justice' (*Kashmir Times*, 21 October 2004), 'The court appointed a lawyer who never took instructions from Afzal, or cross-examined the prosecution witnesses. That lawyer was communal and showed his hatred for my husband.'[20] The Supreme Court held that the 'criticism against the counsel seems to be an afterthought raised at the appellate stage'.[21] But where else could it be raised, and who could have raised it at the trial stage?